

		from the subcontract, any accounts receivable tied to the project, or any potential litigation rights whatsoever. As with above, this argument fails because the Court finds that Plaintiff provided sufficient specificity regarding the accounts receivable related to Defendant. Defendant to file an answer to the complaint within 20 days. Defendant to give notice.
103		

104	Esteban v. Urth Payroll Services, 2025-01511289	DEFENDANT URTH PAYROLL SERVICES' MOTION TO COMPEL ARBITRATION – GRANTED DEFENDANT VASQUEZ'S MOTION TO JOIN MOTION TO COMPEL ARBITRATION – GRANTED Plaintiff Alejandro Esteban was employed by Defendant Urth as a barista, busboy, and food server. Defendant Vasquez is employed in the human resources department by Urth. Plaintiff alleges discrimination claims under FEHA, as well as wage and hour violations. On January 13, 2023, Esteban signed an arbitration agreement (which was provided to him in English and Spanish). Defendants contend this court should compel arbitration of Esteban's claims based on the arbitration agreement. On a motion to compel arbitration, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute." (Brennan v. Opus Bank (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; Dean Witter Reynolds, Inc. v. Byrd (1985) 470 U.S. 213, 218 ["By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to
-----	--	---

arbitration.”].) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (Green Tree Fin. Corp. v. Randolph (2000) 531 U.S. 79, 91.)

Defendants have met their prima facie burden of establishing the existence of an arbitration agreement. (Vera Decl., ¶¶ 13-16, Ex. 1)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.]” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) “To bear this burden, the arbitration opponent must offer admissible evidence creating a factual dispute as the authenticity of their signatures.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747,755.)

In opposition to this Motion, Plaintiff submits his Declaration wherein he states (as relevant to this motion): “3. My first language is Spanish. I am not fluent in English. I reviewed the purported MUTUAL AGREEMENT TO MEDIATE/ ARBITRATE (Hereinafter “Disputed Arbitration”) a true and correct copy is attached as Exhibit 1. [¶] 4. I was not offered arbitration. [¶] 5. I did not agree to arbitration.[¶] 12. After 2022 and 2023, the electronic documents were presented during busy working hours and repeatedly we were told that If we do not sign documents electronically on the spot, we would be terminated. [¶] 13. I do not agree to waive court rights. I do not agree to the arbitration.” (Esteban Decl.)

Here, Mr. Estaban’s declaration is somewhat vague, confusing and contradictory. He does not equivocally state that he never saw the agreement. He states he was not offered arbitration. Perhaps this is the same thing. He indicates he does not speak English, but Defendant’s evidence establishes the agreement was in English and in Spanish. Curiously, he seems to admit to signing documents in 2022 and 2023, but does not suggest what they were—he suggests he was forced to execute the

electronic documents. He also suggests that the agreement was both forged and forced.

Assuming for purposes of this motion that this evidence creates a factual dispute and shifts the burden back to Defendants to authenticate Plaintiff's signature, the court finds Defendants have done so.

Defendant submitted declarations detailing the TalentReef electronic signature process used to distribute the agreement and obtain Plaintiff's signature, including the requirement that employees complete a two-factor authentication and affirmatively execute documents. [See Vera Decl. ¶¶ 7-13; Dubrey Decl. ¶¶ 6-12; Ex. 1]. This evidence is further confirmed by the Declaration of Jacqueline Vasquez, who was employed in Human Resources during the relevant time period and is familiar with the TalentReef system and onboarding procedures in place when Plaintiff executed the MAAC. [Vasquez Decl., ¶¶ 6-8].

Specifically, Ms. Vasquez explains the process as: the employee would receive an email indicating they had a "task" to complete. The email notification included a link directing employees to the TalentReef platform. Declaration of Vera Ex. 2 establishes what the email would look like. Notably, it does not indicate the specific task or that it was an arbitration agreement. Thereafter, to access TalentReef required a two-factor authentication process. Ms. Vasquez further explains, "...employees were directed to a list of outstanding documents requiring review and acknowledgment. Each document required employees to access it individually. In order to electronically sign a document, employees were required to review the document and then scroll to the signature portion, where employees were required to affirmatively indicate agreement to the electronic signature process. The system required employees to type "agree" to confirm they understood and accepted that the electronic signature would be treated the same as a handwritten signature. The system would then record the employee's electronic signature along with a date and time stamp. During the relevant time period, documents made available through TalentReef,

including the MAAC were provided in English and Spanish and employees were required to review each policy document in both languages before being able to input their electronic signature on the document.” (Dec. ¶8) Vasquez advises that there was no mechanism for HR to access the employee’s account and complete the signature process. (Id. ¶9.)

Based on the foregoing, the court finds there was an agreement to arbitrate between the parties. The court further finds the agreement covers the claims raised by the plaintiff. “Covered Claims include, but are not limited to: any claim for breach of contract, fraud, harassment, discrimination, retaliation, wrongful termination, unfair competition, violation of public policy, any tort claims, and any claims for violation of any provision of the Labor Code or Wage Orders, including claims for unpaid compensations, fees, wages, expenses, overtime, penalties, and liquidated damages. Covered Claims also include, but are not limited to, claims brought under any of the following laws: any claims arising under the Age Discrimination in Employment Act of 1967, Fair Labor Standards Act, Americans with Disabilities Act, Rehabilitation Act, Title VII of the Civil Rights Act of 1964, Employee Retirement Income Security Act, National Labor Relations Act, Family and Medical Leave Act, Worker Adjustment and Retraining Notification Act, California Labor Code, California Corporations Code, California Business and Professions Code, California Fair Employment and Housing Act, California Worker Adjustment and Retraining Notification Act, California Workers’ Compensation Act, California Family Rights Act, Unruh Act, California Constitution, (all as amended), or any applicable similar laws, to the full extent permitted by law.” (Dubrey Decl., ex. 1)

Plaintiff fails to establish procedural or substantive unconscionability. As to procedural unconscionability, Plaintiff merely argues, “Here, there was not even an onboarding process with Plaintiff or with any of the employees.” (Opp p. 14:3-4.) As to substantive unconscionability, Plaintiff merely argues, “In this case, although no evidence was ever introduced to verify the

signature's authenticity, it was never challenged.” (Opp p. 14: 9-10)

Plaintiff argues that because of the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”), he cannot be compelled to arbitration.

“Notwithstanding any other provision of this title, at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. § 402(a))

To bring the EFAA into play, Plaintiff must plead a plausible sexual harassment claim. (See Motion’s p. 16:3, citing *Yost v. Everyrealm, Inc.*, 657 F. Supp. 3d 563 and Opp. at p. 11: 19-20 citing *Johnson v. Everyrealm, Inc.* (S.D.N.Y. Feb. 24, 2023) 2023 U.S.Dist.LEXIS 31242 at **3, 26-28.)

Plaintiff’s 107-page complaint pleads fifteen causes of action, but repeats the same facts/theories for each cause of action.

In the 11th cause of action for Harassment, Plaintiff pleads: “The Defendant Supervisor was a male oriented to the same sex. Plaintiff is a male oriented to the opposite sex. Defendant Supervisor favored employees who were male and oriented to the same sex just like Defendant Supervisor. Plaintiff was discriminated, excluded, and subjected to unlawful action because he was not like Defendant Supervisor based on his sexual orientation.” (complaint, p. 72:4-8)

Plaintiff is suggesting he was discriminated against because of his sexual orientation, not that he was harassed. the harassment causes of action do not appear plausible, and the EFAA is not a bar to arbitration.

		While defendant Vasquez is not a signatory on the agreement, she argues the agreement, by its terms, extends to employees of Urth Caffé, of which she is one. (Boucher v. Alliance Title (2005) 127 Cal.App.4th 262, 271 [“a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.”].)
105	Guinoo v. Crisostomo 2021-01224958	A Notice of Stay due to bankruptcy of Defendant Bryan Crisostomo was filed with the court. This is the second time Defendant Bryan Crisostomo has filed a notice of stay due to bankruptcy proceedings. The motion to enforce settlement Agreement and appoint a partition referee will be continued, as required by law. Counsel and any unrepresented parties shall appear at the scheduled hearing time to discuss a continued date for the hearing on these motions.
106	Jarvis Restoration v. Mercury Insurance Services 2026-01546848	DEMURRER TO SECOND CAUSE OF ACTION – OVERRULED MOTION TO STRIKE PUNITIVE DAMAGES CLAIM – GRANTED Defendant Mercury Insurance Services (“Defendant”) filed a demurrer and motion to strike. In the demurrer, Defendant demurs to the second cause of action for bad faith. In the motion to strike, Defendant moves to strike Plaintiff’s claim for punitive damages. Plaintiff Jarvis Restoration, LLC (“Plaintiff”) opposed both motions. <u>DEMURRER</u> As stated in Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 345, as modified on denial of reh’g (July 30, 2001): “[B]efore an insurer can be found to have acted tortiously (i.e., in bad faith), for its delay or denial in the payment of policy benefits, it must be shown that the insurer acted unreasonably or without proper cause.” (Chateau Chamberay Homeowners Ass’n v. Associated Intern. Ins. Co. (2001) 90 Cal.App.4th 335, 347.) “It is now settled law in California that an insurer denying or delaying the payment of policy benefits due